

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on January 14, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of this Order (MC-053) to Defendant by mail at its last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

18. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CHEVRON U.S.A. INC

TENTATIVE RULING:

Summary

Defendants Chevron U.S.A. Inc., Syngenta AG, Syngenta Crop Protection LLC and Wilbur-Ellis Company LLC (collectively, "Chevron Defendants" Special Demurrer to the complaint filed in *Laster et al. v. Syngenta AG et. al*, Case No. CGC-25-631013, and Contra Costa County Case No. MS5031, is **sustained** without leave to amend. No timely opposition was filed by any other party to this case. No appearance is required at the March 11, 2026 hearing.

Background.

On January 16, 2026, the Chevron Defendants filed a Special Demurrer in this action on the grounds that there is a "misjoinder of parties" pursuant to Cal. Civ. Code §§ 378 (a)(1) and 430.10. Chevron Defendants claim that sixteen (16) Plaintiffs are improperly joined in one complaint because their claims do not arise out of the same transaction, occurrence, or series of transactions under Section 378. Even if joinder were proper, Chevron Defendants requests that this court exercise its discretion to require the 16 Plaintiffs to file separate complaints. This Motion was supported by Notice, Memorandum of Points and Authorities, and Request for Judicial Notice. The Request for Judicial Notice is granted.

No timely opposition was filed.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes

waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this demurrer by any party is deemed to consent to the sustaining of this demurrer without leave to amend.

Ruling

Chevron Defendant's Demurrer to the Complaint in *Travis Laster et al v. Syngenta AG, Et. Al* is **sustained** without leave to amend. Chevron Defendants shall prepare a proposed order conforming to this ruling and e-file with the Court no later than ten (10) days from the date of the hearing. No appearance is required at the hearing on March 11, 2026.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-03380

CASE NAME: GREGORY SMITH VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS FURTHER RESPONSES TO DEFENDANT FCA US LLC'S SPECIAL INTERROGATORIES, SET ONE**

FILED BY: FCA US LLC

TENTATIVE RULING:

Defendant and moving party, FCA US LLC, **vacated** this motion on February 26, 2026. No appearance is required at the hearing on March 11, 2026.

20. 9:01 AM CASE NUMBER: C24-02490

CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF DEFENDANT CARDIGAN, INC.'S EMPLOYEE JHOSELIN LOPEZ CISNEROS**

FILED BY: DINSDALE, SCOTT A.

TENTATIVE RULING:

Summary

Plaintiff Scott A. Dinsdale ("Plaintiff")'s Motion to Compel the Deposition of Defendant Cardigan, Inc.'s employee, Jhosselin Lopez Cisneros, is **granted** as set forth herein.

Furthermore, on the Court's own motion, the Court **vacates** the following discovery hearings scheduled on the following dates and refers them to a discovery referee to be jointly appointed by the Parties, as set forth herein:

1. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan Inc. to Form Interrogatories, Set One.
2. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Two.
3. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Three.